

Joseph Dominic Tartaglia v. General Motors LLC, 24CV-0228

Hearing: Motion for Attorney's Fees and Costs

Date: September 23, 2026

TENTATIVE RULING

On April 16, 2024, Joseph Tartaglia (Plaintiff) filed this lemon law action against General Motors LLC (GM or Defendant). The dispute concerns Plaintiff's purchase of a 2019 GMC Sierra 1500 (the Subject Vehicle). The complaint includes causes of action for violations of the Song-Beverly Consumer Warranty Act (the Act). (Civ. Code, § 1790, *et seq.*)

On or about March 20, 2026, the case settled via 998-offer. (Daghighian Dec., ¶ 53.) The settlement agreement permits Plaintiff to seek an award of reasonably incurred fees and costs, as the prevailing party, pursuant to Civil Code section 1794, subdivision (d). (*Ibid.*) Plaintiff now moves for an order awarding those fees and costs to their attorneys, California Consumer Attorneys, P.C. (CCA).

I. LEGAL STANDARD

The prevailing buyer in an action brought under the Act is entitled to reasonable attorney's fees and costs. (Civ. Code, § 1794, subd. (d).) "Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts." [internal quotation marks omitted.] (*McKenzie v. Ford Motor Company* (2015) 238 Cal.App.4th 695, 703-704.)

"[T]he trial court has broad authority to determine the amount of a reasonable fee." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [trial court has broad discretion in determining the amount of a reasonable fee and is governed by equitable principles.]

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ... The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. [Citation.]" (*PLCM Group v. Drexler, supra*, 22 Cal.4th 1084, 1095.) "The factors to be considered include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case." (*EnPalm, LLC v. Teitler, supra*, 162 Cal.App.4th 770, 774, citing *PLCM Group v. Drexler*, at p. 1096.)

The party seeking fees has the burden of establishing entitlement to an award of fees and documenting the appropriate hours expended and hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784; see *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817-818 [the party seeking fees as the prevailing party has "the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount"].)

II. DISCUSSION

Plaintiff requests a total award of \$58,210.56, consisting of the following \$1,000.56 in costs and \$57,210.00 in fees (\$38,140.00, plus a multiplier of 0.5 [\$19,070.00]). In support of the motion, Plaintiffs submitted a detailed invoice from its attorneys, California Consumer Attorneys (CCA), setting forth the hours spent on this action. (Daghighian Dec., ¶ 13, Ex. A.)

GM objects to the requested attorneys' fees and costs as follows: (1) Counsel did not show reasonableness of its rates; (2) the Court should substantially reduce Counsel's request to fees actually and reasonably incurred; (3) the case does not warrant a multiplier; and (4) Counsel's costs are not properly compensable.

A. Reasonableness of Hourly Rates

Plaintiff's counsel requests hourly rates for the attorneys who worked on this case: (1) Sepehr Daghighian (rate of \$625/hr); (2) Michael H. Rosenstein (rate of \$700/hr); (3) Brian T. Shippen-Murray (rate of \$550/hr); (4) James P. Martinez (rate of \$400/hr); (5) Alastair Frederick Hamblin (rate of \$550/hr); and (6) Miguel A. Ortiz (rate of \$525/hr). (See Daghighian Dec., ¶¶ 7-12.) Mr. Daghighian provides an overview of the experience of each attorney that worked on the matter. (*Id.*, ¶¶ 7-12.)

GM argues that Plaintiff's counsel did not meet its burden to demonstrate that the hourly rates it seeks are reasonable in San Luis Obispo County for attorneys with comparable experience litigating Song-Beverly claims. GM contends that Plaintiff's counsel's rates are "extraordinarily high for San Luis Obispo County" and requests that the Court "substantially reduce the rates for all attorneys to arrive at a more reasonable rate for the work performed." (Opp., p. 6, ll. 3, 6-7.)

A plaintiff may retain an attorney from a city with billable rates that exceed the usual rate for legal service in the community where they have made a good faith but unsuccessful effort to find local counsel. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 397-399 [higher out of town rate proper for lodestar calculation where party submitted declaration that he tried to find local counsel and was wholly unsuccessful].)

Plaintiff provides no evidence that an attorney with similar experience or capabilities to the CCA attorneys could not be found or retained locally.¹ Nor is the Court persuaded by CCA's evidence supporting its requested hourly rates, particularly where CCA offers no evidence that the proposed rates reflect the reasonable prevailing hourly rate in the County of San Luis Obispo.

¹ Plaintiff submitted, with his reply papers, a supplemental declaration from Attorney Daghighian stating that "[a]n internet search using Google for San Luis Obispo County lemon lawyers reveals advertisements for lemon law attorneys out-of-market, including those in Los Angeles and San Francisco. Attorneys from San Luis Obispo that did appear were personal injury attorneys, family law attorneys and general practice attorneys." (Daghighian Suppl. Dec. ¶ 3.) The Court does not consider this submission because new evidence is not permitted with reply papers. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 ["new evidence is not permitted with reply papers"]; see Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:106.1 [new evidence in reply papers].) In any event, the Court is not persuaded that this showing is sufficient to establish that counsel with comparable experience or capabilities to the CCA attorneys could not be located or retained in the local market.

Thus, the Court finds that there is no basis for applying hourly rates higher than those usually charged within this community. The Court shall set the hourly rates for CCA attorneys, as noted below, based on the Court's experience and knowledge of the legal market in the County of San Luis Obispo:

Sepehr Daghighian	rate of \$425/hr
Michael H. Rosenstein	rate of \$425/hr
Brian T. Shippen-Murray	rate of \$400/hr
James P. Martinez	rate of \$350/hr
Alastair Frederick Hamblin	rate of \$400/hr
Miguel A. Ortiz	rate of \$425/hr

B. Reasonableness of Fees

GM contends that the Court should substantially reduce counsel's fee request to the amount actually and reasonably incurred. GM argues that "[a]t a minimum, Counsel's fee request should be reduced by 34.9 hours for the clearly excessive, duplicative, block-billed, clerical, unsupported, or unnecessary work associated with" identified entries as not reasonably incurred. (Opp., p. 7, ll. 10-12.)

First, GM requests that the Court strike time entries it characterizes as clerical. GM identifies two entries: updating the discovery tracker and saving notes to the file. Although GM asserts that these entries total approximately 10.2 hours, it identifies no other time entries reflecting clerical work. On this record, the Court does not find that the identified entries constitute non-compensable clerical tasks.

Next, GM requests significant reductions for time purportedly spent on templated motions, including a motion to compel GM's person most knowledgeable deposition, a motion to compel further responses to request for production, and the fee motion. GM contends that the motions are substantially similar to filings in other matters and rely on exhibits attached to the declaration of Ryan Bowton to support this contention. The exhibits are unhelpful. The declaration spans 1,162 pages and provides no page citations directing the Court to the specific comparisons, on which GM relies. GM therefore has not met its burden to identify the specific time entries challenged with sufficient argument and citations to evidence. Accordingly, the Court declines to adopt GM's proposed reductions in the hours expended. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.*, *supra*, 163 Cal.App.4th 550, 564 ["In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice"].)

GM also seeks reductions for time spent drafting discovery requests and preparing discovery responses. GM argues that the requests are nearly identical to those used in other Song-Beverly matters counsel has filed against GM and that the responses are near-duplicates of those served in prior cases. As with the motions addressed above, GM provides no page citations to assist the Court in navigating the 1,162 page declaration or to identify the specific items challenged. GM therefore has not met its burden to support the requested reductions. The Court declines to reduce

the time claimed for these discovery tasks, and likewise declines to reduce the time billed on April 15, 2024 for pre-litigation tasks. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.*, *supra*, 163 Cal.App.4th 550, 564.)

The Court will however, strike one of the January 9, 2025, entries for **1.60 hours**, billed by Miguel Ortiz, as duplicative.

The Court will, also strike the July 24, 2026 entry for **2.50 hours**, billed by Sepehr Daghighian for “[Anticipated] Review Defendant’s Opposition Brief to Plaintiff’s Motion for Fees; Draft Reply Brief ISO: Motion for Attorneys’ Fees, Costs, and Expenses under Civil Code 1974(d).” The Court finds this time duplicative of the July 17, 2026, entry. Further, the July 17 entry for 5.0 hours is sufficient to cover the preparation of the motion, review of the opposition, preparation of the reply, preparation for the hearing, and attendance at the hearing.

C. Multiplier

GM next contends that Plaintiff’s requested 0.5 multiplier is unjustified. Defendant argues that “[t]he ‘risks’ are greatly overstated and nothing in this case required Counsel to expend anything but modest effort or face any novel issue. Counsel simply filed a complaint, drafted a set of templated discovery documents, assembled boilerplate trial documents and motions in limine, and settled the case for a vehicle repurchase – precisely the kind of routine resolution that Counsel achieves in the ordinary course of its practice.” (Opp., p. 10, ll. 18-22.)

“ ‘There is no hard-and-fast rule limiting factors that may justify an exercise of judicial discretion to increase or decrease a lodestar calculation.’ [Citation.] There are numerous such factors, and their evaluation is entrusted to a trial court’s sound discretion; any one of those factors may be responsible for enhancing or reducing the lodestar. [Citations.]” (*Krumme v. Mercury Ins. Co.* (2004) 123 Cal.App.4th 924, 947; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243 [the trial court erred by applying a multiplier enhancement to compensate for out-of-town counsel’s higher rates, because no threshold showing was made that hiring local counsel was impracticable].)

The Court notes that there are a number of cases in this Court involving claims of violations of the Act and GM that involve similar facts, and similar pleadings; and that the law and motion issues across those matters frequently overlap. The claims here were neither novel nor difficult to establish. Accordingly, the circumstances of this case do not warrant a lodestar multiplier, and the Court declines to award one.

D. Costs

As with attorney’s fees under the Act, Plaintiff is entitled to recover their costs as the prevailing party. (Civ. Code, § 1794, subd. (d).) Plaintiff seeks \$1,000.56 in costs. Defendant objects to these costs because Plaintiff did not file a memorandum of costs nor provided evidence to support them. Plaintiff argues that a memorandum of costs is not required under Civil Code section 1794, subdivision (d). Plaintiff directs this court to *Kaufman v. Diskeeper Corp.* (2014) 229 Cal.App.4th 1, 4 for the proposition that “ ‘a party seeking attorney fees

pursuant to Civil Code section 1717 need not, in addition to filing a noticed motion, file a memorandum of costs.’ ” (Mot., p. 1, ll. 21-22, fn. 1.)

However, *Kaufman* also noted its agreement “with the trial court that [the prevailing party] was required to file a memorandum of costs in order to recover the other costs and expenses it sought, and that [the prevailing party’s] failure to do so worked a forfeiture regarding them.” (*Kaufman v. Diskeeper Corp.*, *supra*, 229 Cal.App.4th 1, 6, fn. 2.)

A prevailing party who claims costs must serve and file a memorandum of costs by the deadline set forth in California Rules of Court, rule 3.1700(a.) The cost memorandum must be verified by a statement of the party or the party’s attorney that, to the best of his or her knowledge, the items of cost are correct and were necessarily incurred in this case. (*Ibid.*)

Given that no memorandum of costs is on file, the Court will deduct Plaintiff’s sought-after costs in the amount of \$1,000.56.

III. CONCLUSION

The motion is granted in part. The Court awards \$27,135.00 in attorneys’ fees, as reflected below and expenses in the amount of \$0.00, for a total award of \$27,135.00. The Court declines to apply a lodestar multiplier.

ATTORNEYS’ FEES AWARDED			
Attorney	Hours	Rate	Total
Sepehr Daghighian	19.5	\$425	\$8,287.50
Alastair Hamblin	5.0	\$400	\$2,000.00
James P. Martinez	24.7	\$350	\$8,645.00
Brian T. Shippen-Murray	0.2	\$400	Waived
Miguel A. Ortiz	14.8	\$425	\$6,290.00
Michael H. Rosenstein	4.5	\$425	\$1,912.50
	TOTAL		\$27,135.00

ORDER (PROPOSED)

The motion is granted in part. The Court awards \$27,135.00 in attorneys’ fees, as reflected below and expenses in the amount of \$0.00, for a total award of \$27,135.00. The Court declines to apply a lodestar multiplier.